

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

Record class: appellant counsel appearance and party-interest disclosure.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Rusk appearance

Officer Rusk's Appearance and Disclosure Statement

Filed January 23, 2026.

Counsel enters an appearance for appellant Officer Nolan Rusk in his individual capacity. Rusk appeals the January 9, 2026 denial of qualified immunity in Western District of Virginia Civil Action No. SYN-WDVA-25-CV-0733. This appearance does not revive the City of Alder Creek or Chief Samuel Orton as parties. They were removed when Mara Ellison filed her amended complaint, and the only remaining merits claim is against Rusk individually under 42 U.S.C. § 1983.

Rusk is an individual, not a publicly held corporation. He has no parent corporation, and no publicly held corporation owns ten percent or more of an interest in him. No insurer, indemnitor, or other entity has been identified as possessing a direct financial interest requiring an additional corporate-disclosure entry under the Court's rules. Alder Creek Police Department is Rusk's employing agency but is not an appellant or a separate party to this appeal.

Counsel has reviewed the caption and presently requests no correction. The short caption may use *Rusk v. Ellison* while the full district caption remains available in the transmitted record. Service information is maintained in the Court's electronic filing system.

Disclosure of related proceedings and participants

Rusk knows of no other appeal arising from this district action and no proceeding in another court involving the same January 9 order. The underlying case remains pending before the Honorable Elaine Mercer, United States District Judge. No trial judgment has entered, and this filing does not characterize the interlocutory order as a final disposition.

The incident occurred during a welfare check at Larkspur Court Apartments in Alder Creek, Virginia. Officer Priya Vega, caller Iris Ellison, Paramedic Mateo Cole, Sergeant Lila Grant, Lieutenant Marcus Hale, and the parties' retained experts appear in the district record as witnesses or record custodians. None is a party or an intervenor here. Their inclusion in record materials does not create a separate appellate claim.

Counsel understands that the Court's conflicts review may require identification of entities and persons materially connected to the appeal. This statement supplies those relationships without asserting that every listed witness will be discussed in briefing. If a presently unknown related matter or disclosable interest becomes known, Rusk will supplement promptly.

The appeal concerns only the individual-capacity qualified-immunity ruling. It does not challenge the lawfulness of the initial seizure, adjudicate municipal liability, or seek review of claims voluntarily omitted from the amended complaint.

Counsel certifications

Counsel certifies admission to practice before this Court, registration for electronic filing, and authority to act for Officer Rusk in this appeal. All required notices may be served through the electronic docket unless a rule directs otherwise. Counsel will keep mailing, telephone, and electronic contact information current with the Clerk.

Counsel further certifies that this statement was prepared for appellate administration, not as evidence. References to party status, employment, the order appealed, and the absence of a final judgment identify the proceeding; they do not concede disputed historical facts. In particular, Rusk continues to dispute Ellison's account of the physical encounter while recognizing that the scope of interlocutory review is a separate legal question.

The January 21 docketing notice requires jurisdictional precision. Rusk will identify in his docketing statement which contentions accept the district court's assumed facts and which, if any, address the treatment of the recordings. He will not treat this disclosure form as a vehicle to enlarge the notice of appeal or the certified record.

A copy was electronically served on counsel for Mara Ellison on January 23, 2026. Respectfully submitted by fictional counsel for appellant Officer Nolan Rusk.